

The Bihar Forest Hunting, Shooting & Fishing Rules, 1958

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State of Bihar - Act

The Bihar Forest Hunting, Shooting & Fishing Rules, 1958

BIHAR

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The Bihar Forest Hunting, Shooting & Fishing Rules, 1958

Rule THE-BIHAR-FOREST-HUNTING-SHOOTING-FISHING-RULES-1958 of 1958

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The Bihar Forest Hunting, Shooting & Fishing Rules, 1958

In supersession of all the Rules hereto in force, the Governor of Bihar is pleased, in exercise of the powers conferred by clause (i) and (j) of sub-section (1) of Section 26 in respect of Reserve Forests, and in sub-section (j) of Section 32 *ibid* in respect of Protected Forests, to prescribe the following Rules to regulate hunting, shooting, fishing, the poisoning of water and the setting of traps or snares within any reserved or protected forests in Bihar.

1.

These Rules may be called the Bihar Forest Hunting, Shooting and Fishing Rules, 1958.

2.

In these Rules - "exempted person" means

(a)

(i)

throughout the State members of Government, Secretaries to Government, members of the Service Commission and Heads of Departments,

(ii)

within their own jurisdiction Gazetted Forest Officers, Divisional Commissioners, Judicial Commissioner, Chotanagpur Division, District Judges, Superintending Engineers and Deputy Inspector General of Police.

(iii)

in any Government reserved and protected forest situated in the district in which they are posted District Officers, Supdt. of Police, Gazetted Forest Officers and Sub-divisional officers within their own jurisdiction.

(iv)

exempted person means that he is exempted from paying the shooting fee but he as others shall obtain permit prior to shooting from the Divisional Forest Officer, concerned who will issue it free of charge subject to other conditions in these Rules;

(b)

"Form" means a Form appended to these rules.

(c)

"hunting" includes tracking" for discovering the life of wild animals;

(d)

"permit-holder" means a person to whom a permit has been granted under these Rules.

(e)

"Year" means the period beginning on the 1st October and ending on the 30th September.

3.

The Chief Conservator of Forests may at any time order that any Government forest or part thereof (hereinafter called a sanctuary) shall be closed to the shooting and hunting of all game or that any streams or streams situated within such forest shall be closed to fishing.

4.

Subject to the control of the Conservator of Forests incharge of the circles, the Divisional Forest Officer shall divide all Government forests under his charge, other than sanctuaries, into shooting blocks, and shall fix the number of animals or birds that may be shot in any such block in any year.

5.

The following acts are prohibited in any Reserved or Protected Forests of Bihar.

(a)

poisoning or dynamiting rivers or other waters;

(b)

spearing or running deer with dogs;

(c)

shooting by sitting or watching in the neighbourhood of water or salt licks, any animals other than those declared dangerous;

(d)

erection of dams, weirs or fixing of traps, diverting streams for the purpose of catching fish or driving fish;

(e)

shooting bison with any weapon other than a rifle with a bore equal to or larger than 400;

(f)

shooting between sunset and sun-rise;

(g)

hunting or shooting in any sanctuary, except to pursue an animal wounded by him in part of a forest in which hunting or shooting is permitted;

(h)

Shooting elephant except-when proclaimed as rogue.

(i)

hunting or shooting any game during the prescribed closed season for the various species as given in the appendix;

(j)

shooting or otherwise killing peacocks.

(k)
taking the young or eggs of any bird mentioned in the Appendix without permission of the D.F.O.:
Provided that such permission shall not be granted except to bona fide naturalists;

(l)
shooting more than two bisons in any one year.

6.
Subject to the control of the Conservator of Forests incharge of Circle, the Divisional Forest Officer may grant to any person or party -

(a)
a general permit in form A to hunt, shoot and fish;

(b)
a special permit in form B allowing the holder either; (a) to fish or (b) to shoot ground and winged game or (c) to shoot carnivora and bear only.

7.
When it is found that in any part of the forest a valid elephant has turned rogue and is damaging life or property or a tiger has turned man-eater, the Conservator of Forests upon the recommendation of the Divisional Forest Officer concerned shall proclaim such an animal a dangerous animal and may issue a special free permit in form C to one or more persons who in his opinion will be able to destroy the animal. The tusk and bones would be the property of the person who thus shoots it. The Conservator of Forests may also announce a reward not exceeding Rs. 500/-for each animal, the actual amount varying with the degree of attendant danger.

8.
A permit granted under these Rules may be cancelled at any time by the Divisional Forest Officer, if -
(a)
the Divisional Forest Officer considers that it is necessary to stop hunting, shooting or fishing in the area to which the permit applies; or

(b)
The permit-holder commits a breach of-

(i)
any of the conditions of the permit;
(ii)
any provisions of the Indian Forest Act, 1927, or of these Rules or of any other Rules made under the said Act:
Provided that when permit is cancelled under clause (a) of this Rule, either the entire amount of the fee shall be refunded to the permit-holder or he shall be given another area as near as and similar to the area originally allotted to him, as possible.

9.
The following fees shall be paid for permits, in Form A and each gun in the shooting party shall pay the fee: -
Period not exceeding.

By resident of the Dist. in which the forest is situated

By residents of other district of the State

By persons residing outside the State.

Ten days

One month

Rs. 50

Rs. 100

Rs. 100

Rs. 150

Rs. 200

Rs. 300

In addition to fee at the under mentioned scale shall be payable for every animal shot within the permit:-

For each tiger: Rs. 500 (Rupees five hundred)

For each bison : Rs. 500 (Rupees five hundred)

For each leopard

For panther: Rs. 300 (Rupees three hundred)

For Sambar: Rs. 200 (Rupees two hundred)

For spotted deer or other variety of similar size: Rs. 100 (Rupees one hundred)

No fee shall be payable for the shooting of bears, wild dogs, wild pigs nor for birds nor for catching fish:

Provided that the shooting of peacocks shall be unconditionally prohibited.

10.

The following fees shall be paid for permits in Form B-

(a)

Permits to fish only-

Period

By resident of the Dist. in which the forest is situated

By residents of other district of the State

By persons residing outside the State.

Ten days

Rs. 2

Rs. 3

Rs. 5

One month

Rs. 4

Rs. 6

Rs. 10

(b)

Permit to shoot ground and winged game only; the fees prescribed under (a) above.

(c)

Permit to shoot carnivores and bear-

Period

By resident of the Dist. in which the forest is situated

By residents of other district of the State

By persons residing outside the State.

Ten days

Rs. 25

Rs. 150

Rs. 150

One month

Rs. 50

Rs. 100

Rs. 200

Provided that no fee shall be charged for a permit granted for the destruction of wild dogs or animals declared to be specially dangerous by the officer granting the permit.

11.

Exempted persons may have two guests with guns subject to the following conditions: -

(a)

that the guests are actually accompanied by the exempted persons;

(b)

that the guests shall be bound by the same conditions as permit holder; and

(c)

that the exempted persons shall be responsible for all breaches of such conditions by their guests.

12.

(1)

No permit shall be issued for a period longer than one month, and more than one permit shall not be granted for the same period or part of the period in the same shooting block.

(2)

No permit shall be granted in any shooting block before the expiry of one month from the date upto which the permit issued last for such block was valid:

Provided that on the expiry of his permit, a permit-holder may, for special reasons and at the discretion of Divisional Forest Officer and on payment of the fees prescribed by Rules 9 and 10, be granted an extension of his permit for a further period not exceeding one month, unless another permit for such shooting block has already been issued.

13.

(1)

A permit granted under these Rules shall -

(a)

be available only for use by the person or persons in whose name it is issued;

(b)

be valid only for the shooting block or area specified therein:

Provided that a wounded animal may be followed in to any other shooting block or area into any sanctuary for the purpose of killing it;

(c)

be subject to the conditions specified therein and to the provisions of Rule 4.

(2)

A permit holder shall-

(a)

while he is hunting, shooting or fishing, on demand by a Forest Officer or Police Officer having jurisdiction in the locality produce his permit;

(b)

encamp only on such camping grounds as are entered on his permit or are specified out to him by a Forest Official;

(c)

on vacating the shooting block or other area for which he holds a permit return his permit to such forest official as may be named on it after entering on it the number and species of all animals shot by him and together with the size of heads and shall report any occasion on which he has pursued wounded game outside his shooting block; and

(d)

before leaving the Forest Division pay the special fee for shooting bison, if any, which is payable in accordance with proviso to Rule 9.

(3)

A permit holder shall not shoot or attempt to kill any animal the shooting of which is not permitted under the terms of his permit nor shoot more than the number of head entered in his permit.

14.

(1)

An exempted person -

(a)

shall before shooting, hunting or fishing in any Government forest inform the Divisional Forest Officer of his intention and of the area in which he proposes to shoot, hunt or fish and shall ascertain that there is no-objection to his doing so;

(b)

shall before shooting or hunting in any block ascertain from the Divisional Forest Officer for number of head of each kind of game permitted to him and shall not kill more than that number;

(c)

shall if he had shot a bison within the rules immediately pay the special fee payable thereof under the proviso to Rule 9;

(d)

shall not tie up baits or beat in any block during the period for which a permit granted to any other person for such block has been issued nor for one month after such period:

Provided that he may, with the permission of such permit-holder, if he is present, or without his permission if he is

absent, stalk or track in such shooting block;

(e)

shall comply with the provisions of Rule 13 as far as they are not inconsistent with the provisions of this Rule;

(f)

shall furnish a return similar to that prescribed in sub-clause (2) (d) of Rule 13 for each block to the Divisional Forest Officer upon or immediately after leaving the block. If an exempted person disregards or commits the breach of any of the provisions of these shooting rules the Divisional Forest Officer with the approval of the Conservator of Forests may refuse thereafter to permit him to shoot in any shooting block.

(2)

The Divisional Forest Officer may, on application made in the manner prescribed in Rule 8 for a permit in Form A or B by an exempted person grant to such person an exclusive right to hunt, shoot and fish in any shooting block for a period not exceeding fifteen days.

15.

(a)

Trophies of animals killed accidentally or otherwise, except in self-defence, in contravention of the provisions of Rules 4, 5, 13 or 14; and

(b)

of all heads of bison with a smaller spread than 30 inches, of sambar measuring less than 30 inches, of spotted deer measuring less than 28 inches and of black buck measuring less than 14 inches, shall be forfeited to Government.

16.

The Divisional Forest Officer shall maintain a record in Form D of all game shot in any Government forest under his charge and shall submit to the Conservator of Forests incharge of circle, at such time as the latter may direct, a return in Form E.

17.

An appeal from an order passed by the Divisional Forest Officer under any of the prescribed Rules shall lie to the Conservator of Forests-in-charge whose decision shall be final but if the Divisional Forest Officer has passed only such order with the approval of the Conservator of Forests then the appeal shall lie to Chief Conservator of Forests through the Divisional Forest Officer and Conservator of Forests.

18.

Tribal and customary hunts by the local villagers may be permitted by the Divisional Forest Officer once a year in any Government forest subject to control regarding forest fires, etc.

19.

During the wild life week notified once a year all arms be laid, no shooting permits shall be issued during the period and if already issued then the permit holder shall strictly refrain from shooting in this week and will not be entitled to claim refund of the fee or any part of the fee paid but may have the period of the permit extended by like duration.

Appendix

of Close Season

[Vide Rule 5 (i) and (1)]

of Close Seasons

Birds

Close time

1.

Purple wood pigeons, Herons, Egrets, Rolloers, King-fishers, Hoopoes, Indian Orioles & Black headed Orioles.

Whole year.

2.

Ducks, Floricans, Jungle Fowl, Ortolans, Sand-grouse, Painted snipe and Spurfowl.

11th April to 30th September.

3.

Partridges..

15th March to 30th September.

4.

All pigeons other than purple wood pigeon.

1st Feb. to 31st July.

Animals

Close time

Rhinoceros, the females of buffaloes, Bison, Deer, Gazelles and Antelopes (except Nilghai in the transgangetic district) and male Deer when hornless or with horns in velvet.

Whole year

Hare, the females of Nilghai, males of Deer, Gazelles and Antelopes (except Nilghai in the transgangetic districts); chital, stags.

1st May to 31st October.

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